LAEL Studio

Terms of Service

Last Updated: August 2026

Welcome to Lael Studio. By submitting an inquiry, paying a deposit, or commissioning a website build with us, you agree to the following Terms of Service. Please read them carefully before moving forward with your project.

1. Scope of Work & Project Packages

i. **Package Structure:** Lael Studio specializes in custom websites structured across predefined tiers (Minimalist, Refined, Masterpiece) or custom quotes.

ii. **Section & Feature Limits:** Each package includes a specific core section limit and allocated revision rounds. Any additional sections or features requested beyond the agreed package scope will be billed separately at standard development rates ($125 per section).

iii. **Excluded Services:** E-commerce database builds, multi-page database structures, third-party API integrations, and custom software engineering are excluded from our service.

2. Deposits, Payments & Refunds

i. **Non-Refundable Deposit:** A non-refundable deposit of 50% is required before any project scheduling, design, or development work begins. This deposit secures your dedicated slot in our production schedule and covers non-recoverable setup fees including custom domain registration.

ii. **Final Balance:** Upon completion of design/development and receipt of client approval on the watermarked preview, a final invoice/checkout link will be issued.

iii. **Strict All Sales Final Policy:** Due to the digital and custom nature of web development services, all deposit payments and final payments are strictly non-refundable once work has commenced or site assets are delivered.

iv. **Delivery of Assets:** Full administrative access, source code, live deployment, and domain ownership transfers are released exclusively upon 100% clearance of the final balance.

3. Client-Provided Content & Intellectual Property Indemnification

i. **Client Responsibility:** The client guarantees that all text, images, logos, trademarks, audio, video, and copy provided to Lael Studio for inclusion on the website are either owned by the client or used with explicit authorization from the copyright holder.

ii. **Complete Indemnification:** Lael Studio assumes zero liability for copyright, trademark, or intellectual property infringement resulting from content supplied by the client. The client agrees to fully indemnify, defend, and hold harmless Lael Studio and its owner against any and all claims, damages, liabilities, legal fees, or expenses arising from third-party copyright claims regarding client-supplied materials.

4. Design Approvals, Revisions & Scope Finality

i. **Communication Channel:** All project communications, asset deliveries, feedback, and formal sign-offs must be submitted in writing via email (laelwebstudio@gmail.com) to maintain a binding legal record.

ii. **Revision Rounds:** Revisions are strictly limited to the number of rounds defined in your chosen package and cover visual adjustments within the agreed project brief.

iii. **Approval Finality:** Once a mock-up or preview is formally approved in writing, any subsequent requests to modify or scrap approved layouts will be treated as additional billable development hours.

5. Client Delay, Dormancy & Abandonment Policy

i. **Responsibility to Respond:** To keep projects on schedule, clients must provide feedback or requested materials within reasonable timeframes.

ii. **14-Day Dormancy Clause:** If a client fails to respond to project communications, review links, or feedback requests for more than fourteen (14) consecutive business days without prior written notice, the project will be classified as Dormant.

iii. **Reactivation Fee:** Reactivating a dormant project requires a 30% administrative reactivation fee and is subject to current studio availability.

iv. **Abandonment:** Projects inactive for more than ninety (90) calendar days will be deemed permanently abandoned. All fees paid will be forfeited, and work will be terminated without refund.

6. Domain Registration, Hosting & Third-Party Platforms

i. **Domain Included:** Standard packages include custom domain registration, free for the first full year.

ii. **Account Handover & Renewal:** Upon final payment, full ownership of the domain and hosting environment will be transferred directly to the client. The client maintains 100% sole responsibility for direct annual renewals and maintenance fees thereafter.

iii. **Third-Party Fee Changes & Policy Updates:** Lael Studio has zero control over third-party platforms, registrars, hosting providers, DNS services, or payment processors. Lael Studio shall not be held liable for any future pricing adjustments, recurring fee increases, billing policy changes, structural updates, feature modifications, or terms revisions implemented by these third-party providers.

iv. **Third-Party Infrastructure Disclaimer:** Lael Studio is not liable for service outages, downtime, server technical failures, security breaches, or data loss originating from third-party hosting infrastructure or domain registrars.

7. Post-Launch Maintenance & Warranties

i. **As-Is Delivery:** Websites are delivered "as-is" following client testing and final written approval.

ii. **Post-Launch Support:** Once final deployment and handover are completed, ongoing maintenance, security updates, text modifications, or technical edits are the sole responsibility of the client.

8. Intellectual Property & Portfolio Rights

i. **Client Rights:** Upon 100% payment settlement, full rights to use the delivered website for business operations are granted to the client.

ii. **Studio Rights & Previews:** Unpaid or watermarked previews remain the exclusive intellectual property of Lael Studio. Unauthorized use, copying, or cloning of watermarked previews constitutes copyright infringement.

iii. **Promotional Use:** Lael Studio retains the right to display completed project screenshots, design concepts, and live site links in our studio portfolio, case studies, and marketing materials.

9. Limitation of Liability & Force Majeure

i. **Financial Liability Cap:** To the maximum extent permitted by applicable law, Lael Studio's maximum aggregate liability to the client for any legal claims, losses, or damages shall strictly not exceed the total amount paid by the client for the specific project.

ii. **No Consequential Damages:** Lael Studio shall not be liable for direct, indirect, incidental, consequential, special, or punitive damages, including loss of revenue, loss of business profits, business interruption, or data loss.

iii. **Force Majeure:** Lael Studio is not liable for performance failures or project delays resulting from acts of God, telecommunication failures, electrical grid disruptions, severe weather, war, or third-party infrastructure collapses beyond reasonable control.

10. Governing Law & Jurisdiction

i. These Terms shall be governed by, interpreted, and enforced in accordance with the laws of the Republic of South Africa. Any disputes arising from these Terms or services rendered shall be subject to the jurisdiction of South African courts.

Lael Studio

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